

CLIC Case 0011**Country/Court:** Supreme Court, Ukraine**Decision number/date:** 13-15kc22, 1024-03-12**Crime / Issue:** War Crimes, Aggression**Abstract prepared by:** Philipp Gartner

The Grand Chamber of the Supreme Court of Ukraine reviewed cassation appeals filed on behalf of individuals convicted of multiple offenses, including planning and waging an aggressive war, committing war crimes, and unlawful kidnapping, arising from their 2014 participation in a pro-Russian illegal armed formation in the Luhansk region.

The defense sought to overturn the convictions by arguing that rank-and-file combatants lacking political or military command cannot be held liable the crime of aggression, that war crimes charges were inapplicable due to the absence of a formally declared state of war or martial law in 2014, and that the separate counts of kidnapping and illegal weapons possession were impermissibly redundant.

In relation to the leadership requirement, the Grand Chamber ruled that the crime of aggression applies exclusively to individuals who possess the official authority or societal status to effectively control, direct or significantly influence state military and political decisions, despite the fact that Article 437 of the Ukrainian Criminal Code is silent on this matter. Thereby it dismissed that specific charge against the low-ranking defendants.

Regarding the war crimes charges under Article 438, the Court rejected the defense's claims, affirming that international humanitarian law and domestic war crimes provisions apply to any ongoing armed conflict irrespective of whether a state of war has been officially declared by national authorities.

Finally, applying the principle of *non bis in idem*, the Court concluded that separate charges for kidnapping and weapon handling were superfluous because those actions were entirely encompassed within the objective elements of the war crimes and the illegal armed formation offenses, respectively, resulting in the exclusion of those redundant counts and a modification of the sentences.